Divorce With Children
When Spouses Agree
Form Instructions

Use this form:

1. If you and/or your spouse have lived in Indiana for the last six (6) months.
2. If you and/or your spouse have lived in their current county for at least the past three (3) months.
3. You and your spouse have biological or adopted minor children together.
4. You and your spouse agree on custody, parenting time, and/or how property and debts should be divided.

Before you get started

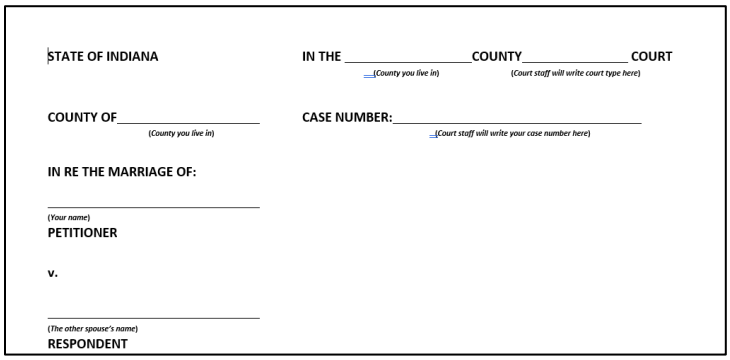
- All forms included in this form packet **are required** to file your divorce case with the court.

- You may choose to file your documents at the courthouse in the county where you live or in the county where your spouse lives, or to e-file them. If you want to file your paper documents at the courthouse, you will need to print them when you have finished filling them out. You can review the information about how to file your forms with the court in-person at this link: https://indianalegalhelp.org/how-to-file-forms-with-the-court-in-person/

- **If you choose to e-file**, instead of filing in-person, make sure you review the information at this link: https://indianalegalhelp.org/how-to-electronically-file-forms-with-the-court/

- **There is a filing fee.** Find the contact information for your local county clerk's office at this link and contact them to find out what the filing fee is: https://www.in.gov/courts/files/court-directory.pdf. You might qualify for a fee waiver. You can learn more about filing for a fee waiver here: https://indianalegalhelp.org/filing-fee-frequently-asked-questions/

Who Should be Completing What?


STATE OF INDIANA

IN THE _____COUNTY_____ COURT
(County you live in) (Court staff will write court type here)

COUNTY OF_____
(County you live in)

CASE NUMBER:_____
(Court staff will write your case number here)

IN RE THE MARRIAGE OF:

_____
(Your name)
PETITIONER

v.

_____
(The other spouse's name)
RESPONDENT

The picture above is a "Caption" and is at the top of each form. You will fill in the county information and your name. The court staff will complete court information and your case number.



The icon to the left is the "**Petitioner**" icon. Wherever you see the Petitioner icon, you will begin filling in the blanks with the correct information. Once you see the Court Staff icon, stop filling in the blanks until you see the Petitioner icon again. The Court Staff icon is explained below.



The icon to the left is the "**Court Staff**" icon. Wherever you see the Court Staff icon, the court staff will fill in the blanks with the required information. **Do not complete** anything in areas where you see the Court Staff con.

There may be entire pages in this form packet that only the court staff or notary public will complete. These pages will only have the Court Staff icon and no Petitioner icons.

Forms Included in this Packet:

1.) Appearance
- This is the form that tells the court and the other party (your spouse) how to contact you if they need to.

2.) Civil Appearance Form
- This is the form that asks for the social security numbers of all parents and minor children involved in the case. This is a private form that the public will not be able to see.

3.) Verified Petition for Dissolution of Marriage
- This is the form that asks the court to start your divorce case.

4.) Summons

- This form will be served to your spouse to let them know you have opened a divorce case with the court. On the form, you will choose how your spouse will receive this form.

5.) Order Setting Provisional Hearing (**This form should only be used if you are requesting a provisional hearing.**)

- If you want the court to tell the parties how they have to behave and what they are responsible for after the case is opened but before it is finalized, you will select that choice in your Verified Petition for Dissolution of Marriage. If you do want a hearing, you must complete this form so the court will schedule a time for you to come to court and notify the other party. At this hearing, the judge will make decisions about the minor child(ren), the marital residence, debts, personal property, vehicles, and temporary restraining orders. The judge will sign a temporary order that will be put in place until your divorce case is finalized. That order is called a Provisional Order, described below.

- You must come to court on the day and time the court puts in the Order Setting Provisional Hearing.

6.) Provisional Order (**This form should only be used if you are requesting a provisional hearing.**)

- This is a temporary order that will be put in place until your divorce case is finalized. The judge will make decisions about the minor child(ren), the marital residence, debts, personal property, vehicles, and temporary restraining orders.

7.) Verified Waiver of Final Hearing

- This form lets the court know that you and your spouse do not want the court to schedule a final hearing for your divorce case because you both agree to the divorce and how everything will be split between you, including things like the minor child(ren), the marital residence, debts, personal property, vehicles, and restraining orders. **File this form sixty (60) days after you file your Verified Petition for Dissolution of Marriage**.

8.) Settlement Decree and Dissolution of Marriage

- This is the form the judge fills out to finalize and end your divorce case. This final order will permanently decide all matters concerning the minor child(ren), the marital residence, debts, personal property, vehicles, and restraining orders. **File this form sixty (60) days after you file your Verified Petition for Dissolution of Marriage**.

Things to Know About Filing Your Court Forms:

- After completing your initial forms and filing them with the court, you have to make a reasonable effort to get a copy of the following forms to your spouse:
    - Appearance
    - Verified Petition for Dissolution of Marriage
    - Summons
    - Notice of Provisional Hearing- (if you have asked for this)
    - Order on Provisional Hearing- (if you have asked for this)

- The clerk will give you options:
    - You can pay to have the sheriff give the completed forms to your spouse,
    - You can pay to have a process server give the completed forms to your spouse, or
    - You can pay to have the clerk mail the papers by certified mail.

It may be hard to find your spouse, but you have to show the court that you really tried. If you cannot find your spouse, make sure you have proof that you really looked for them. This might mean searching social media and using other online resources. If you still cannot find your spouse to get them copies of the forms, the court might allow you to give notice by publishing in a newspaper. You can find links to more information on notice here: https://indianalegalhelp.org/service-frequently-asked-questions/

Terms You May Need to Know

Dissolution of Marriage- This means a marriage is officially ended by a court, so the two people are no longer married. It's another way to say divorce.

Domestic Relations With Children Case (DC)- The court rules in Indiana define what the letters and numbers in the case number mean. These two letters, DC, which are part of your case number, mean this case is a divorce case involving children.

Related Cases- Sometimes there can be other cases that have the same parties and the same kind of issues, like if the Department of Child Services is involved with the family, if the spouses have a protective order case open where one spouse has been harassing the other, or there may be a property dispute case between the spouses about land or property one or the other party owns. Also, it's possible that someone other than the parent(s) was responsible for caring for the child under a Minor Guardianship case. Those types of cases would be considered "Related Cases".

Provisional Order- This is a temporary decision made by a court to tell the parties how they have to behave and what they are responsible for while the case is open. This helps make sure bills are being paid while the case is open but before the court decides who will be responsible for what debt at the end. The Provisional Orders end when the court issues the final order, which is the decree.

Continuous Resident- This means a person has been living in the same place, without living anywhere else, for a certain period of time.

Incapacitated- This means a person is not able to take care of themselves or make decisions because of an illness, injury, disability, or age.

Irretrievable Breakdown- This means the marriage is so damaged that the two people cannot fix it or live together again.

Fit and Proper- This means someone is responsible and capable of doing a good job and is the right person for the job of taking care of the child(ren).

Assets and Personal Property- These are things either of the parties owns that have value, like money, a house, a car, or personal belongings, like clothes, furniture, or electronics, and things like that.

Quitclaim Deed- This is a legal paper that gives ownership of property from one person to another without making any promises that the property is free of problems, like debts or disputes.

Necessary Relief- This means a court gives a fair solution to a problem, based on what seems right and reasonable in the situation.

Perjury- When a person makes a false statement under oath in the things they say in case documents or when they testify in court, when they know the statement is false or they don't believe the statement is true.

Custodial Parent- This is the parent who the child lives with most of the time after a separation or divorce. If the child(ren) spends nearly equal time with each parent, the court will name one of them the custodial parent, but this is only to say who will pay controlled expenses. Controlled expenses are defined below.

Noncustodial Parent- This is the parent who the child does not live with most of the time after a separation or divorce. This parent usually has parenting time rights and may also pay child support. If the child(ren) spends nearly equal time with each parent, the court will name one of them the non-custodial parent, but this is only to say who will not pay controlled expenses. Controlled expenses are defined below.

Joint Legal Custody- This means the parents will share the responsibility for the major decisions for the child's upbringing, including education, health care, and religious training. This is typically used when the parents are able to work things out between themselves about these topics.

Sole Legal Custody- This means that while both parents are allowed to make day-to-day decisions about the child, the parent that has "Sole Legal Custody" is the parent that makes the major decisions about the child's upbringing, including education, health care, and religious training, after talking with the other parent.

Primary Physical Custody- The parent that has "Primary Physical Custody" is usually the parent the child will live with most of the time. This parent, often called the "custodial parent", is the one responsible for the care and supervision of the child most of the time. Usually, the other parent, often called the "noncustodial parent", and the child will have parenting time together on days when the child is not staying with the custodial parent.

Parenting Time Guidelines- The Indiana Parenting Time Guidelines are official rules that show how parents that don't live together should share time with their children. They provide a minimum amount of time for when each parent can spend time with their child. These guidelines are meant to help make sure kids get to see both parents and that their needs are met fairly.

Child Support- Child support is money one parent has to pay to help take care of the child after the parents are no longer living together. The amount of money is based on how much money both parents make and what the child needs, like food, a place to live, and school. The goal is

for the child to have a similar life as if the parents were still living together. Both parents share the costs, based on how much money they each make.

Income Withholding Order- An Income Withholding Order in a family law case is a court order that tells your employer to take money directly from your paycheck to pay for child support. This money is then sent to the other parent or to the Indiana State Central Collection Unit (INSCCU), which will then pass it along to the other parent. It helps ensure that payments are made regularly and on time.

Controlled Expenses- Controlled expenses are costs for things like clothing, school supplies, and personal care that the custodial parent, the parent who primarily takes care of the child, pays for. These expenses are not paid for by the other parent and are only covered by the custodial parent. Examples include buying a winter coat or paying for schoolbooks.

Child Support Arrearage- Child support arrearage, sometimes known as back child support, is the amount of money that is still owed because it hasn't been paid when it was supposed to be paid. It is the total of all missed child support payments. If there is any arrearage, sometimes a court will include an additional amount of child support that goes toward paying off the arrearage.

Spousal Maintenance- This is money one spouse may have to pay the other after a divorce, to help them support themselves, especially if they didn't work or didn't make as much money. When deciding if spousal maintenance is needed, the court looks at things like how long the marriage lasted, how the couple lived during the marriage, how much money each spouse has, how educated each spouse is, and how much each spouse can earn.

Date of Final Separation- This is the day when a couple stops living together as a married couple, and they begin living separately, even if the divorce isn't final yet.

Certificate of Service- **Note*: You will need to know these options each time you have to tell the court how you served court papers to the other person in the case. Come back to this definition when you need to remember what your options are, like when you are completing the Certificate of Service sections in the forms included in this packet**

When a court case begins, it's important for both sides to know about it and receive official forms. This is called "service of process." These forms tell them about the case and their rights. You are required to give a copy of every form you file with the court to every other person involved in the case. You must say when you gave them the copies and how you gave them the copies. Here are the ways to get them their copies:

> First Class U.S. mail- You can serve the court forms by paying to have them sent by certified mail. The clerk will ask you to complete the Certified Mail card. The clerk will serve the court forms by Certified Mail. Certified mail ensures that the court forms have been signed for and received.

Hand Delivery- You can serve the court forms by paying to have a sheriff or private company hand- deliver them to the other party. Ask the clerk for information on how to use the Sheriff's office to serve your court forms.

Indiana's E-Filing System- You can serve the court forms by filing your documents electronically. Ask the clerk for information on how to e-file your court forms.

Clerk's Certificate of Mailing- This is where the Clerk of the Court says what date they mailed certain documents, who they mailed them to, and how they were mailed.

Return on Service of Summons by Mail- This is where the Clerk of the Court says what happened with the documents they mailed. Only one of the options will be completed.

Return of Service of Summons by Sheriff- This is where the Sheriff will say how the documents were delivered, and the date they were delivered.

STATE OF INDIANA **IN THE _____ COUNTY _____ COURT**
(*County you live in*) (*Court staff will write court type here*)

COUNTY OF _____ **CASE NUMBER: _____**
(*County you live in*) (*Court staff will write your case number here*)

IN RE THE MARRIAGE OF:

_____
(*Your name*)
PETITIONER

v.

_____
(*The other spouse's name*)
RESPONDENT

APPEARANCE BY SELF-REPRESENTED PERSON IN CIVIL CASE

1. My name is: _____.
2. I am representing myself in this case and I do not have a lawyer.
3. I am the initiating party who is opening this case with the court.

   Note: **If you are the initiating party that is opening this case with the court and this case, or another case with the same parties, involves a protection from abuse order, a workplace violence restraining order, or a no-contact order, you must provide an address where you can be served legal documents. But, that address should not be one that shows your location.**
4. My address is (***Include your street name, city, state, and zip code***):

   _____

   _____ .

   My email address, phone number, and fax number are (***An email address and a 10-digit phone number are required below; a fax number is not required if you do not have one***):

   Email Address: _____

   Phone Number: _____

   Fax Number: _____
5. I would like to receive my court documents and case information (***Select One Below***):

   ☐ at my street address.

   ☐ at my email address.

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☐ at the Attorney General confidential address. ***(This option is only available if you have used this address in another court case.***)

6. This is a DC case type as defined in Administrative Rule 8(B)(3).
7. (***Select One Below***):

   ☐ There are other cases related to this DC case. The case number(s) can be found below:

   _____

   ☐ There are no other cases related to this DC case.

8. **(*Select One* Below):**

   ☐ I am not aware of any additional information required by a local rule that I must provide.

   ☐ There is additional information required by local rule that is provided below:_____

   _____

Signature:_____ Date:_____

Certificate of Service

⚠ I certify that I got a copy of this form to the other party and any other interested parties in this case, as listed below. I sent this form to:

First and Last Name	Address	Type of Service Used	Date of Service

Signature: _____ Date:_____

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STATE OF INDIANA **IN THE _____COUNTY_____ COURT**

(*County you live in*) (*Court staff will write court type here*)

COUNTY OF_____ **CASE NUMBER:_____**

(*County you live in*) (*Court staff will write your case number here*)

IN RE THE MARRIAGE OF:

_____

(*Your name*)

PETITIONER

v.

_____

(*The other spouse's name*)

RESPONDENT

NOT FOR PUBLIC ACCESS

IN ACCORDANCE WITH INDIANA RULES ON ACCESS TO COURT RECORDS

Court Staff: For self-represented litigants, treat this form as if it is printed on light green paper. If it is e-filed, file it as a confidential document.

Civil Appearance Form

Instructions: Write the social security numbers of each parent and minor child who is involved in this case below. Be sure to include: your name, the other parent's name, your child(ren)'s name(s).

Name: _____ SS#: _____

Name: _____ SS#: _____

Name: _____ SS#: _____

Name: _____ SS#: _____

Name: _____ SS#: _____

Name: _____ SS#: _____

Name: _____ SS#: _____

NOT FOR PUBLIC ACCESS

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STATE OF INDIANA **IN THE _____COUNTY_____ COURT**

(*County you live in*) (*Court staff will write court type here*)

COUNTY OF_____ **CASE NUMBER:_____**

(*County you live in*) (*Court staff will write your case number here*)

IN RE THE MARRIAGE OF:

_____

(*Your name*)

PETITIONER

v.

_____

(*The other spouse's name*)

RESPONDENT

VERIFIED PETITION FOR DISSOLUTION OF MARRIAGE

1. My name is: _____.
2. (***Select One Below***)
   - ☐ I am asking the court for a provisional order.
   - ☐ I would not like a provisional order.
3. My address is (***Include your street name, city, state, and zip code***): _____
   _____.
4. My spouse's address is (***Include your street name, city, state, and zip code***): _____
   _____.
5. I have been a continuous resident of:
   State (***the state you have been living in (usually Indiana)***): _____.

   (***Select One Below***)
   - ☐ For ____ years. (***the number of years you have lived in the state listed above)***
   - ☐ For____ months. (***if under a year, the number of months you have lived in the state listed above***)

   County (***the county you have been living in***):_____.
   (***Select One Below***)
   - ☐ For ____ years. (***the number of years you have lived in the county listed above)***
   - ☐ For____ months. (***if under a year, the number of months you have lived in the county listed above***)

6. My spouse has been a continuous resident of:
   State (***the state your spouse has been living in***): _____.

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(***Select One Below***)

☐ For ____ years. (***the number of years your spouse has lived in the state listed above)***

☐ For____ months. (***if under a year, the number of months your spouse has lived in the state listed above***)

County (***the county your spouse has been living in***):_____.

(***Select One Below***)

☐ For ____ years. (***the number of years your spouse has lived in the county listed above)***

☐ For____ months. (***if under a year, the number of months your spouse has lived in the county listed above***)

7. The following party has been a continuous resident of an Indiana county or has been stationed at a United States Military installation in an Indiana county for the last three (3) months or longer:
(***Select One Below***)
   ☐ Petitioner (you)
   ☐ Respondent (your spouse)
   ☐ Both
8. The following party has been a continuous resident of Indiana or stationed at a United States Military installation in Indiana for the last six (6) months or longer:
(***Select One Below***):
   ☐ Petitioner (you)
   ☐ Respondent (your spouse)
   ☐ Both
9. The date my spouse and I were married was (***Include the month, day, and year***):
   _____.
10. The date my spouse and I became separated was (***Include the month, day, and year***):
   _____.
11. My spouse and I agree on how any debts or assets will be divided.
12. My spouse and I have this number of living children who are either under the age of twenty-one (21) or incapacitated (***write the number of living children you and your spouse have together that are under the age of twenty-one (21) or incapacitated***): _____.

Name of Child (***First and Last Name***)	Date of Birth (***Include month, date, and year***)	Age (***Child's Age***)	Address (***Child's current address***)

**Your judge may ask for the addresses where each child has lived and who they lived with during the past five (5) years.*

13. (***Select One Below***):
    - ☐ I am pregnant.
    - ☐ I am not pregnant.
14. (***Select One Below***)
    - ☐ My spouse is pregnant.
    - ☐ My spouse is not pregnant.
15. My spouse and I have suffered an irretrievable breakdown in our marriage.
16. (***Select One Below***):
    - ☐ I am opening this divorce case with the court for myself.

    OR

    - ☐ I am the guardian of the petitioner in this case and am opening this divorce case with the court on their behalf because they are incapacitated. (***Complete the name and address section below.)***

      My name is (***Name of guardian***):

      _____.

      My address is (***Address of guardian. Include your street name, city, state, and zip code***):

      _____

      _____

      The name of the petitioner who I am guardian of is (***Name of the petitioner you are filing this case on behalf of***):

      _____.

      I have attached a copy of the court order giving me authority to ask the court for dissolution of marriage described in IC 29-3-9-12.2
17. The party that is the fit and proper person to have custody of our minor child(ren) is (***Select One Below***):
    - ☐ Petitioner (you)
    - ☐ Respondent (your spouse)
18. An order for child support and parenting time should be made by the court.
19. (***Select One Below***):
    - ☐ There are no other open cases that are related or involve the minor child(ren) in this case.
    - ☐ There are other open cases that are related or involve the minor child(ren) in this case. The case information can be found below:

Location (***County and state the case is filed in)***	Case Number

** Including custody, support, domestic violence, protective order, CHINS, TPR, guardianship, and adoption cases.*

20. (***Select One Below***):
    - ☐ I, the Petitioner, am not a lifetime sex or violent offender.
    - ☐ I, the Petitioner, am a lifetime sex or violent offender.
21. (***Select One Below***):
    - ☐ My spouse, the Respondent, is not a lifetime sex or violent offender.
    - ☐ My spouse, the Respondent, is a lifetime sex or violent offender.
22. Change of Name

    (***Select One Below, if true***):
    - ☐ Petitioner would like to change their last name back to the last name they had before they were married to the other spouse in this case. The former last name was (**The last name the party had before they were married to the current spouse in this case):**

      _____.
    - ☐ Respondent would like to change their last name back to the last name they had before they were married to the other spouse in this case. The former last name was (**The last name the party had before they were married to the current spouse in this case):**

      _____.
23. **(Select One Below):**
    - ☐ I am a member of the military.
    - ☐ I am not a member of the military.
24. **(Select one Below):**
    - ☐ My spouse is a member of the military.
    - ☐ My spouse is not a member of the military.
25. I am asking the court to issue an order to end the marriage between me and my spouse and for all other necessary relief.
26. (***Select One Below***)
    - ☐ I am not asking the court to make a provisional order to go into effect until this case is finalized (***If you check this box, make sure the correct box is also checked on question #2 above).***
    - ☐ I am asking the court to make provisional orders on the following issues that should go into effect immediately until this case has ended and the court has made a final order to end the marriage between me and my spouse (***If you check this box, make sure the correct box is also checked on question #2 above. If you would like the court to provide temporary orders until your divorce is finalized, select the issues you would like the court to provide temporary orders for below. Select all that apply.***):
      - ☐ Temporary custody of the minor child(ren).
      - ☐ Temporary child support of the minor child(ren).
      - ☐ Temporary parenting time for the noncustodial parent.

☐ Temporary possession of the marital residence.

☐ Temporary division of debts shared between spouses.

☐ Temporary division of property.

☐ Temporary division of cars and motor vehicles.

☐ Spousal maintenance.

☐ Preventing spouses from moving out of the state with minor child(ren) without the court's permission or the permission of the spouses.

☐ Preventing spouses from moving property to another location, giving property to someone else, hiding property, or getting rid of any property that belongs to either of the spouses.

☐ Other (***describe any other issues you need the court to provide a temporary order on***):

_____

_____

_____

_____

_____.

I affirm under penalties for perjury that the statements above are true.

Printed Name: _____

Signature: _____

Date: _____

Certificate of Service



I certify that I got a copy of this form to the other party and any other interested parties in this case, as listed below. I sent this form to:

First and Last Name	Address	Type of Service Used	Date of Service

Signature: _____ Date: _____

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STATE OF INDIANA **IN THE _____ COUNTY _____ COURT**

(*County you live in*) (*Court staff will write court type here*)

COUNTY OF _____ **CASE NUMBER: _____**

(*County you live in*) (*Court staff will write your case number here*)

IN RE THE MARRIAGE OF:

_____

(*Your name*)
PETITIONER

v.

_____

(*The other spouse's name*)
RESPONDENT

SUMMONS

For Divorce Cases Only

Instructions: In the lines below, write the other spouse's (Respondent) full name and address (include the street, city, state, and zip code) so this summons can be sent to them.

THE STATE OF INDIANA TO: _____

_____

_____

You have been sued by your spouse in a divorce case. The case has been opened in the state and county listed above.

If this form has an Order Setting Hearing form attached to it, you must go to court on the date and time written on the Order Setting Hearing form. **If you do not go to the hearing, evidence may be heard and the court may make decisions without you**. If a Temporary Restraining Order is ordered by the court, it will go into effect immediately when you receive the order or when you know the order has been given by the court.

If you would like to hire a lawyer to represent you in this divorce case, you should do so before the date that is written on the Notice of Provisional Hearing form.

If you take no action in this case after receiving this Summons form, the court can finalize the divorce case and/or make decisions that may include but are not limited to the following issues: paternity, child custody, child support, maintenance, parenting time, property (real or personal), or dividing any other assets and debts, lawyer fees, and costs.

I choose the following as the way for the Summons to be served (***Select One Below***):

☐ by Certified Mail sent by the Clerk

☐ by Sheriff to be delivered to the person and at the address listed above

☐ by Sheriff to be delivered to the place of employment for the person listed above, at the following address: _____

_____



Date: _____

_____
Clerk

_____ COURT

By: _____
Deputy Clerk

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CLERK'S CERTIFICATE OF MAILING

I hereby certify that on the _____day of_____,

20_____, I mailed a copy of this Summons and a copy the Petition to the Respondent by certified mail, requesting a return receipt, at the address provided by the Petitioner.

Dated:_____ _____

Clerk, _____County

RETURN ON SERVICE OF SUMMONS BY MAIL

☐I hereby certify that the attached receipt was received by me showing that the Summons and a copy of the Petition mailed to the Respondent of this Summons was accepted by the Respondent on the ___ day of_____ _____, 20_____.

☐I hereby certify that the attached return receipt was received by me showing that the Summons and a copy of the Petition was returned not accepted on the _____ day of _____, 20_____.

☐I hereby certify that the attached return receipt was received by me showing that the Summons and a copy of the Petition mailed to the Respondent of this Summons was accepted by _____ on behalf of the Respondent on the _____ day of_____ _____, 20_____.

Dated:_____ _____

Clerk, _____ County

RETURN OF SERVICE OF SUMMONS BY SHERIFF

I hereby certify that I have served this summons on the _____ day of _____, 20_____.

By delivering a copy of the Summons and a copy of the Petition to the Resondent.

By leaving a copy of the Summons and a copy of the Petition at:

_____

_____

which is the dwelling place or usual place of abode of the Respondent and by mailing a copy of the Summons to the Respondent at the above address.

The Respondent was not found in my bailwick this date, _____, 20_____.

ALL DONE IN _____, COUNTY, INDIANA.

_____

SHERIFF OF _____ COUNTY, INDIANA

BY: _____

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CCA-DC-0719-1022
www.indianalegalhelp.org

STATE OF INDIANA **IN THE _____ COUNTY _____ COURT**

(*County you live in*) (*Court staff will write court type here*)

COUNTY OF _____ **CASE NUMBER: _____**

(*County you live in*) (*Court staff will write your case number here*)

IN RE THE MARRIAGE OF:

_____

(*Your name*)

PETITIONER

v.

_____

(*The other spouse's name*)

RESPONDENT

ORDER SETTING PROVISIONAL HEARING

A Verified Petition for Dissolution of Marriage asking the court for provisional orders has been filed in this Court. The Court has set this matter for a Provisional Hearing, where the court will make decisions for how important family and property matters will be handled while the case is still ongoing. The parties must go to court and be prepared to show evidence to support how they want the court to decide on the issues of child custody, parenting time, child support, health insurance, spousal support, who will need to pay what debts and bills, and who should have what property. The provisional order will only be in force while the case is still ongoing. Provisional orders end when the court issues the final order, which is the decree. If a party does not come to this hearing, the court may make decisions without that party.



IT IS ORDERED that this case will be heard on: _____.

Date: _____ _____

Judicial Officer

Distribution:



Petitioner Name: _____

Petitioner Address: _____

_____

Respondent Name: _____

Respondent Address: _____

_____

Approved by the Coalition for Court Access
CCA-DC-0719-1026
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STATE OF INDIANA **IN THE _____ COUNTY _____ COURT**
(*County you live in*) (*Court staff will write court type here*)

COUNTY OF _____ **CASE NUMBER: _____**
(*County you live in*) (*Court staff will write your case number here*)

IN RE THE MARRIAGE OF:

_____
(*Your name*)
PETITIONER

v.

_____
(*The other spouse's name*)
RESPONDENT

PROVISIONAL ORDER



The Provisional Hearing was held on: _____.

The Petitioner:

☐ Came to the Provisional Hearing.

☐ Did not come to the Provisional Hearing.

The Respondent:

☐ Came to the Provisional Hearing.

☐ Did not come to the Provisional Hearing.

The Court, after considering all the evidence, has made the following decisions:

1. Primary physical custody of the minor child(ren) will:
   ☐ go to the Petitioner.
   ☐ go to the Respondent.
   ☐ be shared equally between the parents.

2. Legal custody of the minor child(ren) will:
   ☐ go solely to the Petitioner.
   ☐ go solely to the Respondent.
   ☐ be shared jointly between the parents.

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3. Temporary child support for the minor child(ren) will be paid by:
   ☐ Petitioner.
   ☐ Respondent.

   The amount to be paid each week is: $ _____.

   The date that temporary child support will begin will be: _____.

   Note: All child support payments should be made through the County Clerk's Office (cash payments only) or the Indiana State Central Collection Unit, PO Box 6219, Indianapolis, Indiana 46206-6219 (for any payments that are not cash). The court will issue and immediately activate Income Withholding according to IC 31-16-15 to any employer or income provider to the party who will be paying the child support.

   The percentage of reasonable and medically necessary annual expenses for the minor child(ren)'s uninsured medical, dental, orthodontic, hospital, vision, pharmaceutical, and psychological healthcare expenses that the **Petitioner** will be paying for the minor child(ren) will be: ____%.

   The percentage of reasonable and medically necessary annual expenses for the minor child(ren)'s uninsured medical, dental, orthodontic, hospital, vision, pharmaceutical, and psychological healthcare expenses that the **Respondent** will be paying for the minor child(ren) will be: ____%.

   Note: To ask the other parent for their share of the payment, you must provide them with copies of all documents relating to the insurance claim and expenses paid or incurred within thirty (30) days of receiving the claim documents. If the other parent does not receive the documents within thirty (30) days, you may no longer be able to receive their share. Expenses that are paid at the time of service must be submitted within thirty (30) days of receiving the service.

4. Temporary parenting time with the minor child(ren) will go to the:
   ☐ Petitioner
   ☐ Respondent
   as follows:
   ☐ according to the Indiana Parenting Time Guidelines.
   ☐ _____
   _____
   _____

5. Temporary ownership of the marital residence will go to the:
   ☐ Petitioner.
   ☐ Respondent.

6. Medical, dental, and optical insurance that is available through employment, Health Insurance Marketplace, or government-provided insurance, will be provided by the:
   ☐ Petitioner.
   ☐ Respondent.

   The insurance will cover the following persons: _____
   _____
   _____
   _____
   _____.

7. Temporary spousal maintenance will be paid by:
   ☐ Neither party.
   ☐ Petitioner.
   ☐ Respondent.
   The spousal maintenance to the other party will include: _____
   _____
   _____
   _____
   _____.

8. The Petitioner:
   ☐ will not be temporarily responsible for paying any debts.
   ☐ will be temporarily responsible for the following debts: _____
   _____
   _____
   _____
   _____.

   The Respondent:
   ☐ will not be temporarily responsible for paying any debts.
   ☐ will be temporarily responsible for the following debts: _____
   _____
   _____
   _____
   _____.

9. The Petitioner:
   ☐ will temporarily have sole possession of the following items of property:
   _____
   _____
   _____
   _____
   _____.

The Respondent:

☐ will temporarily have sole possession of the following items of property:

_____

_____

_____

_____

_____.

10. The Petitioner:

☐ will not have temporary possession of any vehicles.

☐ will have temporary possession of the following vehicles.

_____

(***Vehicle #1, Make, Model, and Year***)

_____

(***Vehicle #2, Make, Model, and Year***)

The Respondent:

☐ will not have temporary possession of any vehicles.

☐ will have temporary possession of the following vehicles.

_____

(***Vehicle #1, Make, Model, and Year***)

_____

(***Vehicle #2, Make, Model, and Year***)

11. There will be a temporary restraining order in effect until this divorce case is finalized:

☐ Restraining the parties from removing the child(ren) from the state without the permission of the court or all parties.

☐ Restraining the parties from moving property to another location, giving property to someone else, hiding property, or getting rid of any property that belongs to either party.

☐ Other:

_____

_____

_____

_____

_____.

ALL WHICH IS SO ORDERED: _____

_____

Judicial Officer

Approved by the Coalition for Court Access
CCA-DC-0719-1027
www.indianalegalhelp.org

Distribution:



Petitioner Name: _____

Petitioner Address: _____

_____

Respondent Name: _____

Respondent Address: _____

_____

Approved by the Coalition for Court Access
CCA-DC-0719-1027
www.indianalegalhelp.org

Instruction: Fill out this top section to match the other court forms filed in this case

STATE OF INDIANA **IN THE _____ COUNTY _____ COURT**

COUNTY OF _____ **CASE NUMBER:** _____

IN RE THE MARRIAGE OF:

_____

PETITIONER

v.

_____

RESPONDENT

VERIFIED WAIVER OF FINAL HEARING

The Petitioner and Respondent, according to Indiana Code 31-15-2-13, are submitting their Verified Waiver of Final Hearing. In support of this waiver, the parties state that:

1. More than sixty (60) days have passed since the Petitioner filed the Verified Petition for Dissolution of Marriage.
2. Both parties are asking the Court to approve their Settlement Agreement and Decree of Dissolution of Marriage.
3. Both parties voluntarily waive their opportunity to hold a final hearing, as there are no issues they disagree on that they wish to discuss in court, and have signed below before filing this form with the court.



I affirm, under the penalties for perjury, that the statements above are true.

_____	_____
Petitioner Signature	Respondent Signature
_____	_____
Date	Date
Petitioner Address (***Include street name, city, state, and zip code***):	Respondent Address (***Include street name, city, state, and zip code***):
_____	_____
_____	_____
_____	_____
_____	_____

Approved by the Coalition for Court Access
CCA-DC-0719-1024
www.indianalegalhelp.org

Instruction: Fill out this top section to match the other court forms filed in this case

STATE OF INDIANA **IN THE _____ COUNTY _____ COURT**

COUNTY OF _____ **CASE NUMBER:** _____

IN RE THE MARRIAGE OF:

_____

PETITIONER

v.

_____

RESPONDENT

SETTLEMENT AGREEMENT AND DECREE OF DISSOLUTION OF MARRIAGE



1. The parties have submitted a Settlement Agreement.
2. The Court has seen and reviewed the Verified Petition of Dissolution of Marriage and the Verified Waiver of Final Hearing and approves the agreement in this form.
3. The Petitioner and the Respondent were married on: _____.
4. The Petitioner and the Respondent were separated on: _____.

   The following party has been a continuous resident of an Indiana County for the last three (3) months is the (***Select One Below***):

   ☐ Petitioner
   ☐ Respondent
   ☐ Both

   The Indiana County they have been a continuous resident of is (***County name***):

   _____.

   The party that has been a continuous resident of the State of Indiana for the last six (6) months before the Verified Petition for Dissolution of Marriage was filed is the (***Select One Below***):

   ☐ Petitioner
   ☐ Respondent
   ☐ Both

5. (**Select One Below**):

   ☐ I am a member of the military.
   ☐ I am not a member of the military.

6. (**Select One Below**):

☐ My spouse is a member of the miliary.
☐ My spouse is not a member of the miliary.

7. (***Select One Below***):

☐ The Petitioner is pregnant.
☐ The Respondent is pregnant.
☐ Neither party is pregnant.

8. The number of children that the parties have is ***(the number of children you and your spouse have together that are either under the age of twenty-one (21) or are incapacitated***): _____.
The names and dates of birth for each child is below:

Name of Child (***First and Last Name***)	Date of Birth (***Include month, date, and year***)	Age (***Child's Age***)	Address (***Child's current address***)

9. Custody and Care of the Minor Child(ren)

It is in the best interest of the minor child(ren) that (***Select One Below***):

☐ The parties should have joint legal custody over the minor child(ren) and the **Petitioner** should be the primary custodial parent.

☐ The parties should have joint legal custody of the minor child(ren) and the **Respondent** should be the primary custodial parent.

☐ The **Petitioner** should have sole legal custody of the minor child(ren) and should be the primary custodial parent.

☐ The **Respondent** should have sole legal custody of the minor child(ren) and should be the primary custodial parent.

☐ Other (**Describe the best custody and care arrangement for the minor child(ren)**):

_____
_____
_____

_____

_____.

10. Parenting Time

Parenting Time with the minor child(ren) should be as follows:

(***Select One Below***):

☐ The **Petitioner** should have parenting time with the minor child(ren), at minimum, as set out by the Indiana Parenting Time Guidelines.

☐ The **Respondent** should have parenting time with the minor child(ren), at minimum, as set out by the Indiana Parenting Time Guidelines.

☐ The parties agree that it is in the best interest of the minor child(ren) to follow a parenting time schedule that does NOT follow the Indiana Parenting Time Guidelines. Parenting time with the minor child(ren) should be as follows:

_____

_____

_____

_____

_____.

11. Child Support

Child support for the minor child(ren) will be paid by:

☐ Petitioner.

☐ Respondent.

The amount to be paid each week is: $ _____.

- This amount can be found in the attached Child Support Obligation Worksheet.
- Payments will begin on the first Friday following the date of the Decree.
- All child support payments should be made through the County Clerk's Office (cash payments only) or the **Indiana State Central Collection Unit, PO Box 6219, Indianapolis, Indiana 46206-6219** (for any payments that are not cash).
- The court will issue and immediately activate an Income Withholding according to IC 31-16-15 to any employer or income provider of the party who will be paying the child support.

Controlled expenses related to the upbringing of the minor child will be paid by (***Select One Below; Note: this should only be used in cases where parenting time is equally shared by parents***):

☐ Petitioner.

☐ Respondent.

The percentage of reasonable and medically necessary annual expenses for the minor child(ren)'s uninsured medical, dental, orthodontic, hospital, vision, pharmaceutical, and psychological healthcare expenses that the **Petitioner** will be paying for the minor child(ren) will be: _____%.

The percentage of reasonable and medically necessary annual expenses for the minor child(ren)'s uninsured medical, dental, orthodontic, hospital, vision, pharmaceutical, and psychological healthcare expenses that the **Respondent** will be paying for the minor child(ren) will be: _____%.

Note: To ask the other parent for their share of the payment, you must give them copies of all documents relating to the insurance claim and expenses paid or incurred within thirty (30) days of receiving the claim documents. If the other parent does not receive the documents within thirty (30) days, you may no longer be able to receive their share. Expenses that are paid at the time of service must be submitted within thirty (30) days of receiving the service.

Child support payments have added up since this divorce case has been opened with the court and child support arrearage must be paid. Child support arrearage will be paid by the (***Select One Below***):

☐ Petitioner.
☐ Respondent.

The total amount in child support arrearage is: $ _____.

The amount to be paid each week is: $ _____.

Note: Child support arrearage is to be paid <u>in addition</u> to the child support payments stated above. Child support arrearage payments will stop when all of the child support arrearage amount has been paid.

12. <u>Health Insurance</u>

Health insurance for the minor child(ren) should be provided as follows:

Medical, dental, and optical insurance that is available through employment, Health Insurance Marketplace, or government-provided insurance, will be provided by the:

☐ Petitioner.
☐ Respondent.

OR

☐ Because neither party has health insurance that is available to them at a reasonable cost, neither party will be responsible for providing health insurance at this time.

If health insurance for the minor child(ren) becomes available at a reasonable cost to one or both of the parties, when it becomes available to that party, they will get insurance for the child(ren) within a reasonable time from when the insurance becomes available.

13. Taxes

Note: Each party will need to work together to sign all necessary documents that will allow the party who is claiming the minor child(ren) on their taxes to do so.

Note: The non-custodial parent may claim the child as a dependent for federal and state tax purposes for their specific calendar year(s) mentioned below only if they have paid at least ninety-five percent (95%) of the child support owed for that year by January 31 of the following year, according to I.C. § 31-16-1.5(d). The custodial parent should take all actions necessary to give up the exemption to claim the child as a dependent during those years by using the process described under Section 152(e) of the Internal Revenue Code.

Tax credits, exemptions, and deductions for the minor child(ren) will be claimed in the following manner:
Federal, state, and local income taxes for the minor child(ren) will be claimed for the minor child(ren) **every year** by the (***Select One Below***):

☐ Petitioner.
☐ Respondent.
OR
☐ The Petitioner and Respondent should claim federal, state, and local income taxes for the minor child(ren) **every other year**.

The Petitioner will claim the minor child(ren) on (***Select One Below***):
☐ Even number years,
☐ Odd number years,
starting **(the first year the Petitioner will claim the minor child(ren) on their taxes**):_____.

The Respondent will claim the minor child(ren) on (***Select One Below***):
☐ Even number years,
☐ Odd number years,
starting **(the first year the Respondent will claim the minor child(ren) on their taxes**):_____.

14. Joint Debt

Note: How the Court decides to divide the debt will not keep a creditor from trying to collect money from you. If you have a lot of joint debt, it is highly recommended that you speak with an attorney.

The debt belonging to both parties will be divided as follows (***Select One Below***):
☐ The Petitioner and Respondent do not have any outstanding debts that they are responsible for paying.

OR

☐ The Petitioner (***Select One Below***):

☐ will not be responsible for paying any of the joint debt that belongs to both parties.

☐ will be responsible for paying the following debts and will be responsible for any liability, expenses, attorney's fees, litigation costs, and loss that the Respondent has to pay if the Petitioner does not pay that debt. The Petitioner will be responsible for paying the following debts:

Name of Creditor (***Name of the Person or Company owed***)	Amount of Debt Owed (***the dollar amount owed to the Creditor***)

The Respondent (***Select One Below***):

☐ will not be responsible for paying any of the joint debt that belongs to both parties.

☐ will be responsible for paying the following debts and will be responsible for any liability, expenses, attorney's fees, litigation costs, and loss that the Petitioner has to pay if the Respondent does not pay that debt. The Respondent will be responsible for paying the following debts:

Name of Creditor (***Name of the Person or Company owed***)	Amount of Debt Owed (***the dollar amount owed to the Creditor***)

15. <u>Individual Debt</u>

Individual Debt will be divided as follows:

Debts that are in the **Petitioner's name only** (***Select One Below***):

☐ The Petitioner has no debts that are in their individual name.

☐ The Petitioner will be responsible for all debts in their individual name, and all debts that have been added by the Petitioner in their name since the date of final separation. The Petitioner agrees to be responsible for paying these debts and will be responsible for any liability, expenses, attorney's fees, litigation costs, and loss that the Respondent has to pay if the Petitioner does not pay any of these debts.

☐ Other (***Describe how the debt in the Petitioner's name should be divided. The court's assignment of responsibility will not stop a creditor from trying to collect money from the Petitioner if the debt is not paid.***):

_____

_____

_____

_____

_____.

Debts that are in the **Respondent's name only** (***Select One Below***):

☐ The Respondent has no debts that are in their individual name.

☐ The Respondent will be responsible for all debts in their individual name, and all debts that have been added by the Respondent in their name since the date of final separation. The Respondent agrees to be responsible for paying these debts and will be responsible for any liability, expenses, attorney's fees, litigation costs, and loss that the Petitioner has to pay if the Respondent does not pay any of these debts.

☐ Other (***Describe how the debt in the Respondent's name should be divided. The court's assignment of responsibility will not stop a creditor from trying to collect money from the Respondent if the debt is not paid.***):

_____

_____

_____

_____

_____.

16. Vehicles

Vehicles will be divided as follows (***Select One Below***):

☐ There are no vehicles to divide between the Petitioner and the Respondent.

OR

☐ The Petitioner (***Select One Below***):

☐ will not keep any vehicles.

☐ will keep the following vehicles, and the Respondent will sign all necessary documents to transfer the title of the following vehicles within a reasonable time after the date this Decree is finalized by the court:

_____

(***Vehicle #1, Make, Model, and Year***)

_____

(***Vehicle #2, Make, Model, and Year***)

The Respondent (***Select One Below***):

☐ will not keep any vehicles.

☐ will keep the following vehicles, and the Petitioner will sign all necessary documents to transfer the title of the following vehicles within a reasonable time after the date this Decree is finalized by the court:

_____

(***Vehicle #1, Make, Model, and Year***)

_____

(***Vehicle #2, Make, Model, and Year***)

Note: Make sure that all outstanding debts related to the vehicles listed above are included in the Joint Debt Section (Line 14) and Individual Debt Section (Line 15) in this form.

17. Personal Property

Personal property belonging to each party will be divided as follows (**Select One Below**):

☐ The parties have already divided all items of personal property.

OR

☐ The Petitioner will have possession of the following items of personal property (***describe the items below***):

_____
_____
_____
_____
_____.

The Respondent will have possession of the following items of personal property (***describe the items below***):

_____
_____
_____
_____
_____.

18. Marital Residence

The parties own real estate located at (***the address of the real estate you and your spouse live at/own or pay a mortgage on. Include the street name, city, state, and zip code. Write "N/A" if you and your spouse do not own real estate or a property***):

_____
_____.

The party who will take possession and will become the owner of the real estate will be the (***Select One Below***):

☐ Petitioner.

☐ Respondent.

☐ There is no real estate owned by either party to take possession of.

The party that will leave the marital residence will be the (***Select One Below***):

☐ Petitioner.
☐ Respondent.
☐ There is no marital residence for either party to leave.

This party will leave the marital residence by (***the date the party above will move out of the marital residence. Include the month, day, and year. Write "N/A" if there is no marital residence for either party to leave.***): _____.

The party that will be responsible for all payments relating to property taxes and homeowners' insurance and that will receive the deductions for mortgage interest and taxes will be the (***Select One Below***):

☐ Petitioner.
☐ Respondent.
☐ There are no payments relating to property taxes and homeowners' insurance because there is no real estate owned by the parties.

The party who will transfer their ownership in the real estate by Quitclaim Deed to the party that will be taking possession of the real estate will be the (***Select One Below***):

☐ Petitioner.
☐ Respondent.

This party will transfer the real estate by signing and delivering a Quitclaim Deed by (***the date the party above will transfer the real estate to the party who will be keeping the real estate by. Include the month, day, and year. Write "N/A" if there is no real estate to transfer***):

_____.

The following party will be responsible for refinancing the mortgage debt for the real estate and for making a good faith effort to obtain a release of the other party on the mortgage debt at the earliest date possible. When the other party is released from the mortgage debt, they will transfer their share of the property by Quitclaim Deed. The party who will be responsible for the mortgage agrees to be responsible for any liability, expenses, attorney's fees, litigation costs, and loss that

may be added by failure to make payments on the mortgage debt. (***Select the party that will refinance the mortgage so that the debt on the real estate will only be in that party's name. Select One Below***):

☐ Petitioner.
☐ Respondent.
☐ There is no mortgage debt to refinance because there is no real estate owned by the parties.

OR

☐ Other (***If the Petitioner and Respondent have agreed to deal with the real estate in a different way than the options listed above, describe the agreement here***):

_____
_____
_____
_____.

The parties are both responsible for renting or leasing a residence located at (***the address of the residence you and your spouse are renting or leasing. Include the street name, city, state, and zip code. Write "N/A" if you and your spouse are not renting or leasing a residence***):

_____
_____.

The party that will keep or take possession of the rented or leased residence, be responsible for paying rent and fees due under the lease, and not hold the other party responsible for any liability, expenses, attorney's fees, litigation costs, and loss or damages that may be added by failure to make required payments under the lease will be: (***Select the party that will keep the rented or leased residence and will make rent or lease payments. This assignment of responsibility may not stop the landlord from attempting to collect money from the other party if the rent or lease is not paid by the party keeping possession of the rented or leased residence. Select One Below***):

☐ Petitioner.
☐ Respondent.
☐ There is no residence being rented or leased by the parties.

The party that will leave the rented or leased residence is the:

☐ Petitioner.
☐ Respondent.
☐ There is no residence being rented or leased by the parties.

The party will leave the rented or leased residence by (***the date the party who is not keeping the rented or leased residence will leave by. Write "N/A" if you and your spouse are not renting or leasing a residence***):

_____.

19. Change of Names

    The Petitioner (***Select this if the Petitioner wants to restore their former name***):

    ☐ would like their former last name restored and is not a lifetime sex or violent offender or has complied with I.C. 31-15-2-19.

    The Petitioner's last name will now be (***write the last name that the Petitioner had before marrying the Respondent***):_____.

    The Respondent (***Select this if the Respondent wants to restore their former name***):

    ☐ would like their former last name restored and is not a lifetime sex or violent offender or has complied with I.C. 31-15-2-19.

    The Respondent's last name will now be (***write the last name that the Respondent had before marrying the Petitioner***):_____.

20. The marriage has suffered a breakdown that cannot be repaired and should be ended.
21. Both parties have shown and agreed that the division of property and payment of debts is fair and correct and that each party is satisfied with the way the property and debt have been divided.

I affirm under penalties for perjury that the statements above are true.

The following signatures must be signed in front of a notary public. Many banks and libraries have a notary public available. A notary public will charge a small fee.

Petitioner's Full Name: _____

Petitioner's Signature: _____

Date: _____

Notary Public will complete the next section.

STATE OF INDIANA
COUNTY OF _____

Before me, _____, a notary public in and for _____ County, State of Indiana, personally appeared _____, and he/she having been first duly sworn upon his/her oath, says that the facts as alleged in the foregoing instrument are true.

Date: _____ _____
Notary Public

My Commission Expires: _____

I affirm under penalties for perjury that the statements above are true.

The following signatures must be signed in front of a notary public. Many banks and libraries have a notary public available. A notary public will charge a small fee.



Respondent's Full Name: _____

Respondent's Signature: _____

Date: _____

Notary Public will complete the next section.



STATE OF INDIANA
COUNTY OF _____

Before me, _____, a notary public in and for _____ County, State of Indiana, personally appeared _____, and he/she having been first duly sworn upon his/her oath, says that the facts as alleged in the foregoing instrument are true.

Date: _____ _____
Notary Public

My Commission Expires: _____



Date: _____ _____
Judicial Officer